

PANEL 01/12 - DEMOCRATIC FUNCTION AND PARTY-SYSTEM MAP

Party = voluntary association seeking public power through elections.	
Functions: aggregate interests -> programme -> candidates -> government/opposition ->	
accountability.	
Party system counts effective competitors: one-party, two-party, multi-party, dominant and	
coalition.	
India = competitive multi-party + federalised State variation; dominance is not monopoly.	
Answer line: parties convert social plurality into governable and reviewable choices.	

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PANEL 02/12 - CONSTITUTIONAL AND LEGAL LAYERS

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Constitution: Tenth Schedule; Arts 102(2)/191(2) disqualification bridges.	
Arts 75(1B)/164(1B)/361B: bounded post-defection office bars.	
RPA 1951: Sec 29A registration; 29B-29C contributions; Sec 77 expenditure.	
Symbols Order 1968: recognition, reserved/free symbols and Paragraph 15 disputes.	
No single comprehensive party law; recognised party is not a constitutional office.	
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PANEL 03/12 - SECTION 29A REGISTRATION

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Association/body of individual Indian citizens -> apply to ECI.	
New body: within 30 days of formation; chief executive signs; Secretary ECI receives.	
Particulars: identity, head office, officers, membership, units, legislators.	
ECI guideline: newspaper notice of proposed name -> 30-day objection opportunity.	
Rules must affirm Constitution, socialism, secularism, democracy, sovereignty, unity, integrity.	
Registration != recognition, reserved symbol, incorporation or approval of every later act.	
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PANEL 04/12 - ENTRY DECISION AND DEREGISTRATION LIMIT

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ECI may seek particulars -> reasonable hearing -> register or refuse -> communicate decision.	
Material changes after registration must be notified without delay.	
INC (I) v Institute of Social Welfare (2002): Section 29A function quasi-judicial.	
No general at-will deregistration; narrow fraud/supervening-unlawfulness situations remain.	
Internal-democracy failure alone does not create an unenumerated cancellation power.	
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PANEL 05/12 - RECOGNITION AND SYMBOLS

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Recognised party = National or State under performance tests in Symbols Order.	
National alternatives: 6% in 4+ States + 4 LS members; 2% LS from 3 States; State party in 4.	
State alternatives: 6%+2 MLAs; 6%+1 MP; 3%/3 seats; 1 MP per 25; or 8% valid votes.	
Reserved symbol -> recognised-party candidate; free symbol -> other eligible candidates.	
Status/list date-sensitive; symbol is electoral entitlement, not private property.	
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PANEL 06/12 - PARAGRAPH 15, SADIQ ALI AND KANHAIYA LAL OMAR

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Rival groups of recognised party -> ECI identity inquiry under Paragraph 15.	
Sadiq Ali: organisational + legislative majority valuable; no mechanical legislature-only rule.	
ECI decides which group is the party for Symbols Order purposes; symbol cannot be divided.	
Kanhaiya Lal Omar: Symbols Order valid under Art 324 + Conduct Rules 5 and 10.	
Article 324 supplements election law; it does not authorise contradiction of statute.	
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PANEL 07/12 - SUBHASH DESAI AND ANTI-DEFECTION BOUNDARY

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Political party != legislature party; political party authorises whip/leader.	
Speaker applies Tenth Schedule; ECI decides prospective Paragraph 15 symbol identity.	
Proceedings may coexist; neither institution substitutes for the other.	
Two-thirds merger defence != Paragraph 15 victory; ECI order does not erase past conduct.	
Anti-defection is bounded legislative discipline, not a general party-regulation code.	
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PANEL 08/12 - CONTRIBUTIONS, TAX AND TRUSTS

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Sec 29B: voluntary contributions subject to company-law and foreign-source restrictions.	
Sec 29C: report each contribution > Rs 20,000 to ECI before tax-return due date.	
Non-reporting -> loss of tax relief; threshold is not donation cap or spending ceiling.	
Sec 13A: books + donor records + audit + banking/return compliance condition exemption.	
Electoral Trusts Scheme 2013: traceable intermediary; >=95% eligible distribution to Sec 29A	
parties.	
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PANEL 09/12 - ELECTORAL BONDS AND TRANSPARENCY

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2017 amendments -> 2018 bearer-bond anonymity architecture.	
ADR v Union of India, 15 Feb 2024, five judges, 2024 INSC 113.	
Scheme/non-disclosure changes invalid: voter information under Art 19(1)(a).	
Unlimited corporate-funding change invalid under Art 14 manifest arbitrariness.	
SBI data -> ECI publication; judgment did not enact a complete campaign-finance code.	
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PANEL 10/12 - INTERNAL DEMOCRACY, CANDIDATES AND CAMPAIGNS

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Membership rolls -> organisational elections -> leadership -> ticket distribution.	
Risks: high command, dynasty, opaque finance, weak appeals and candidate centralisation.	
ADR/PUCL affidavits; Rambabu Singh Thakur party publication/reasons; Lily Thomas conviction	
boundary.	
Sec 77: candidate account; notified leaders 40/20; travel exclusion is bounded.	
Paid news, MCC and manifestos operate through different rules; all promises are not corrupt	
practices.	
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PANEL 11/12 - OPPOSITION, FEDERALISM, DIGITAL AND RTI

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Opposition: scrutiny + alternative policy + committees + electoral alternation.	
Discipline enables government; overbroad whips can compress deliberation.	
National centralisation/regional autonomy = tendency shaped by territory and office, not law.	
Digital reform: sponsor/ad library/expenditure trail/deepfake response + due process.	
CIC 2013 RTI order exists, but contested implementation forbids a settled universal claim.	
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PANEL 12/12 - EXAM FILTER AND REFORM VERDICT

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Prelims: Constitution vs RPA vs Symbols Order vs case proposition.	
Mains: function -> legal frame -> selected deficit -> evidence -> counter -> reform -> verdict.	
Reforms: minimum internal procedure, open finance, graded sanctions, independent appeal.	
No volatile lists/data; no invented PYQ/key; proposals remain proposals.	
Verdict: regulate parties' public consequences proportionately while protecting political pluralism.	
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